# PECH GROUP HOLDINGS LTD

*Technology & Infrastructure Enablers for Africa*

## TABLE OF CONTENTS

1. Parties & Definitions
2. Appointment
3. Scope of Services
4. Commission Structure
5. Payment Terms
6. Independent Contractor Status
7. Marketing Materials
8. Customer Ownership
9. Intellectual Property
10. Confidentiality
11. Non-Disparagement
12. Compliance
13. Non-Competition
14. Media Policy
15. Term & Termination
16. Clawback
17. Reporting
18. Indemnification
19. Data Protection
20. Dispute Resolution
21. General Provisions
22. Signature Block
23. Schedule A: Commission Rate Table

## 1. PARTIES & DEFINITIONS

**THIS COMMISSION MARKETER AGREEMENT** (hereinafter referred to as the "Agreement") is made and entered into on the __ **day of __, 20__**

**BETWEEN:**

**PECH Group Holdings Ltd**, a company duly incorporated under the laws of the Federal Republic of Nigeria, with its registered office at _____, Lagos, Nigeria (hereinafter referred to as the **"Company"** or **"PECH"**, which expression shall where the context so admits include its successors-in-title and assigns)

**AND:**

**Name: _____**

**Address: _____**

**Phone: _____**

**Email: _____**

**BVN: _____**

**Tax Identification Number (TIN): _____**

(hereinafter referred to as the **"Marketer"**, which expression shall where the context so admits include the Marketer's personal representatives and permitted assigns)

The Company and the Marketer are hereinafter individually referred to as a **"Party"** and collectively as the **"Parties"**.

## 1.1 Definitions

In this Agreement, unless the context otherwise requires, the following terms shall have the meanings ascribed to them below:

**"Affiliate"** means any entity that directly or indirectly controls, is controlled by, or is under common control with PECH Group Holdings Ltd.

**"Authorised Territory"** means the geographical area within which the Marketer is permitted to carry out marketing activities, as specified in Schedule A or as otherwise agreed in writing by the Company.

**"Clawback Period"** means the thirty (30) calendar day period following a customer's purchase during which a cancellation, refund, or chargeback may result in the reversal of commission paid or payable to the Marketer.

**"Commission"** means the percentage-based fee payable to the Marketer as compensation for successful referrals and sales in accordance with the Commission Rate Table set out in Schedule A.

**"Confidential Information"** means all information, whether written, oral, electronic, or visual, disclosed by the Company to the Marketer or otherwise obtained by the Marketer in the course of performing services under this Agreement, including but not limited to trade secrets, business strategies, customer lists, pricing structures, product roadmaps, technical specifications, financial data, marketing plans, and any information marked or reasonably understood to be confidential.

**"Customer"** means any individual, business, or entity that purchases or subscribes to the Company's products or services as a result of the Marketer's referral or marketing efforts.

**"CRM System"** means the Company's designated customer relationship management platform used for tracking leads, referrals, sales, and commission calculations.

**"Effective Date"** means the date on which this Agreement becomes operative, as stated on the first page hereof.

**"FIRS"** means the Federal Inland Revenue Service of the Federal Republic of Nigeria.

**"Gross Revenue"** means the total amount invoiced to and received from a Customer for the Company's products or services, exclusive of Value Added Tax (VAT), delivery charges, and any applicable discounts approved by the Company.

**"Intellectual Property"** means all patents, trademarks, service marks, trade names, logos, copyrights, trade secrets, domain names, and all other intellectual property rights belonging to the Company.

**"Lead"** means a prospective customer identified and referred by the Marketer to the Company through the approved referral process.

**"NDPA"** means the Nigeria Data Protection Act, 2023, and all regulations, guidelines, and directives issued thereunder.

**"Net Commission"** means the Commission payable to the Marketer after deduction of applicable Withholding Tax (WHT) and any other statutory deductions.

**"Products and Services"** means the Company's IoT devices, smart home systems, solar solutions, platform subscriptions, marketplace listings, logistics referrals, and any other products or services offered by the Company from time to time.

**"Qualified Sale"** means a completed transaction where a Customer referred by the Marketer has made full or partial payment (as applicable) for the Company's Products and Services, and the transaction has not been reversed, cancelled, or refunded within the Clawback Period.

**"Referral Period"** means the duration following the Marketer's initial introduction of a Lead during which the Marketer remains entitled to Commission on purchases made by that Lead, as specified in Schedule A.

**"Volume Bonus"** means the additional commission percentage payable to the Marketer upon achieving specified cumulative sales thresholds within a calendar month, as detailed in Section 4 and Schedule A.

**"WHT"** means Withholding Tax at the rate of five percent (5%) as prescribed by the Federal Inland Revenue Service (FIRS) for payments to independent contractors and commission agents.

## 2. APPOINTMENT

### 2.1 Engagement

The Company hereby appoints the Marketer, and the Marketer hereby accepts the appointment, as a non-exclusive commission-based sales agent of the Company for the marketing, promotion, and sale of the Company's Products and Services within the Authorised Territory, subject to the terms and conditions set forth in this Agreement.

### 2.2 Non-Exclusive Arrangement

This appointment is on a **non-exclusive** basis. The Company reserves the right to appoint other marketers, agents, distributors, or representatives to market and sell the same Products and Services within the same or overlapping territories. The Marketer shall have no claim to exclusivity unless expressly granted in a separate written agreement signed by an authorised officer of the Company.

### 2.3 No Authority to Bind

The Marketer shall have no authority to enter into contracts, make representations, give warranties, or assume obligations on behalf of the Company unless expressly authorised in writing by the Company. The Marketer shall not hold themselves out as an employee, partner, or officer of the Company.

### 2.4 Acceptance of Terms

By executing this Agreement, the Marketer acknowledges that they have read, understood, and voluntarily agreed to all terms and conditions contained herein, including the Commission Structure, Clawback provisions, and Non-Competition clauses.

# 3. SCOPE OF SERVICES

## 3.1 Marketing Activities

The Marketer shall undertake the following activities on behalf of the Company:

**(a)** Actively identify, prospect, and refer potential customers for the Company's Products and Services;

**(b)** Promote the Company's IoT devices, smart home systems, solar solutions, platform subscriptions, marketplace listings, and logistics services to prospective customers within the Authorised Territory;

**(c)** Conduct product demonstrations, presentations, and consultations with potential customers using only Company-approved materials and messaging;

**(d)** Register all Leads and referrals through the Company's CRM System in a timely and accurate manner;

**(e)** Provide prospective customers with accurate and truthful information regarding the Company's Products and Services, pricing, and terms;

**(f)** Assist in facilitating the onboarding of new customers, including but not limited to scheduling installations, platform sign-ups, and service activations;

**(g)** Attend training sessions, product launches, and marketing briefings organised by the Company as reasonably required;

**(h)** Provide regular feedback to the Company regarding market conditions, customer needs, competitor activities, and sales opportunities within the Authorised Territory;

**(i)** Maintain professional conduct and represent the Company's brand values of reliability, quality, and value for money in all interactions with prospective and existing customers.

## 3.2 Prohibited Activities

The Marketer shall NOT:

**(a)** Make false, misleading, or unauthorised representations about the Company, its Products and Services, pricing, or capabilities;

**(b)** Offer discounts, rebates, or special terms to customers without prior written approval from the Company;

**(c)** Collect payments directly from customers on behalf of the Company unless expressly authorised in writing;

**(d)** Engage in any form of spam, unsolicited bulk messaging, or aggressive sales tactics that may damage the Company's reputation;

**(e)** Market or sell competing products or services in violation of the Non-Competition provisions of this Agreement;

**(f)** Sub-appoint or delegate their marketing responsibilities to third parties without the prior written consent of the Company;

**(g)** Use the Company's name, logo, or trademarks in any manner not expressly authorised by the Company.

# 4. COMMISSION STRUCTURE

## 4.1 Commission Rates

The Marketer shall be entitled to Commission on Qualified Sales at the rates specified in the Commission

Rate Table set out in **Schedule A** of this Agreement. The current base commission rates are as follows:

| Product/Service Category | Commission Rate (%) | Payment Trigger | Referral Period |
|---|---|---|---|
| IoT Devices & Hardware | 8% | Customer payment received | 12 months |
| Platform Subscriptions | 12% | First 12 months of subscription | 12 months |
| Marketplace Listings | 5% | Listing fee paid | 6 months |
| Solar Solutions | 10% | Installation payment received | 12 months |
| Logistics Referrals | 3% | Service fee paid | 6 months |
| Enterprise/Custom Solutions | Negotiable | As per SOW | As per SOW |

### 4.2 Volume Bonus Tiers

In addition to the base commission rates, the Marketer shall be entitled to Volume Bonus commissions based on cumulative monthly Gross Revenue generated from Qualified Sales, calculated as follows:

| Monthly Cumulative Sales (NGN) | Bonus Rate |
|---|---|
| NGN 0 - NGN 999,999 | Base rate (no bonus) |
| NGN 1,000,000 - NGN 4,999,999 | Base rate + 2% |
| NGN 5,000,000 - NGN 9,999,999 | Base rate + 4% |
| NGN 10,000,000 and above | Base rate + 6% |

### 4.3 Commission Calculation

**(a)** Commission shall be calculated on the Gross Revenue of each Qualified Sale attributable to the Marketer, as recorded and verified through the Company's CRM System.

**(b)** Volume Bonus tiers shall be assessed on the cumulative value of all Qualified Sales within a single calendar month. The applicable bonus rate shall apply retroactively to all sales within that month once the relevant threshold is achieved.

**(c)** For Platform Subscriptions, the Marketer shall receive the applicable commission rate on each monthly subscription payment made by the Customer during the first twelve (12) months of the subscription, provided the subscription remains active and payments are received.

**(d)** For Enterprise/Custom Solutions, the commission rate shall be negotiated on a case-by-case basis and documented in a separate Statement of Work (SOW), which shall be appended to this Agreement.

### 4.4 Commission Eligibility

**(a)** The Marketer must be the first to register a Lead in the Company's CRM System to be eligible for Commission on sales to that Lead. In the event of a dispute regarding Lead attribution, the Company's CRM records shall be considered the primary reference, and the Company's determination shall be final.

**(b)** Commission is earned only on Qualified Sales. No commission shall be payable on transactions that are cancelled, refunded, charged back, or otherwise reversed within the Clawback Period.

**(c)** The Referral Period commences on the date the Lead is first registered in the CRM System. Any purchases made by the Lead after the expiry of the applicable Referral Period shall not be eligible for Commission.

**(d)** The Marketer shall not be entitled to Commission on sales made to the Marketer themselves, their immediate family members, or entities in which the Marketer holds a controlling interest, unless expressly approved by the Company in writing.

## 5. PAYMENT TERMS

### 5.1 Payment Schedule

**(a)** Commission payments shall be made on a **monthly** basis. The Company shall calculate all commissions earned during a given calendar month and remit payment within **fifteen (15) business days** following the close of that calendar month.

**(b)** The minimum payout threshold is **NGN 10,000** (Ten Thousand Naira). Where the Marketer's accrued commission in any given month falls below this threshold, the commission shall be carried forward and aggregated with the following month's commission until the minimum threshold is met.

**(c)** Payments shall be made via bank transfer to the Marketer's designated bank account as provided in writing to the Company. The Marketer is responsible for ensuring that accurate banking details are on file with the Company at all times.

### 5.2 Withholding Tax

**(a)** All commission payments are subject to **Withholding Tax (WHT) at the rate of five percent (5%)** in accordance with the provisions of the Companies Income Tax Act (CITA), Personal Income Tax Act (PITA), and directives of the Federal Inland Revenue Service (FIRS), as applicable.

**(b)** The Company shall deduct WHT at source and remit same to the FIRS on behalf of the Marketer. The Company shall provide the Marketer with WHT credit notes for all deductions made, which the Marketer may use to offset their annual tax liability.

**(c)** The Marketer is solely responsible for the payment of all other taxes, levies, and statutory obligations arising from income earned under this Agreement, including but not limited to personal income tax, VAT (where applicable), and any state or local government levies.

### 5.3 Commission Statements

The Company shall provide the Marketer with a detailed monthly commission statement showing:

**(a)** All Qualified Sales attributed to the Marketer during the period;

**(b)** The applicable commission rate for each transaction;

**(c)** Any Volume Bonus adjustments;

**(d)** Any Clawback deductions;

**(e)** WHT deductions;

**(f)** The Net Commission payable.

### 5.4 Disputes

Any dispute regarding commission calculations must be raised by the Marketer in writing within **fourteen (14) calendar days** of receipt of the monthly commission statement. Failure to raise a dispute within this period shall constitute acceptance of the statement as accurate and final.

### 5.5 No Additional Compensation

The Marketer acknowledges and agrees that the Commission payable under this Agreement constitutes the **entire compensation** for services rendered. The Marketer shall not be entitled to any base salary, retainer, allowance, benefits, reimbursement of expenses, or any other form of compensation from the Company unless expressly agreed in a separate written instrument.

## 6. INDEPENDENT CONTRACTOR STATUS

### 6.1 Relationship of the Parties

**The Marketer is an independent contractor and is NOT an employee, agent, partner, or joint venturer of the Company.** Nothing in this Agreement shall be construed to create an employer-employee relationship, partnership, joint venture, or agency relationship between the Parties, except to the extent that the Marketer is authorised to act as a sales agent for the limited purpose of marketing and promoting the Company's Products and Services.

### 6.2 No Employment Benefits

The Marketer acknowledges and agrees that, as an independent contractor:

**(a)** The Marketer is not entitled to any employment benefits, including but not limited to health insurance, pension contributions, paid leave, sick leave, overtime pay, gratuity, severance pay, or any other benefits available to employees of the Company under Nigerian labour law or the Company's internal policies;

**(b)** The Company shall not make any contributions to the National Pension Commission (PenCom), National Health Insurance Authority (NHIA), Industrial Training Fund (ITF), or any other statutory employment scheme on behalf of the Marketer;

**(c)** The Marketer is solely responsible for their own tax obligations, insurance, professional registration, and compliance with all applicable laws and regulations governing their independent business activities;

**(d)** The Marketer is free to determine their own working hours, methods, and means of performing the marketing activities described herein, subject to compliance with this Agreement and the Company's brand guidelines.

### 6.3 No Right to Direct

The Company shall not exercise direct control or supervision over the manner in which the Marketer performs their marketing activities. The Company may, however, establish reasonable performance standards, brand guidelines, and compliance requirements that the Marketer must adhere to.

### 6.4 Tools and Equipment

The Marketer shall provide their own tools, equipment, transportation, communication devices, internet access, and all other resources necessary to carry out their marketing activities at their own cost and expense. The Company shall have no obligation to provide any tools, equipment, or work facilities to the Marketer.

### 6.5 Indemnification for Misclassification

In the event that any government authority, court, or tribunal determines that the relationship between the Parties constitutes an employment relationship, the Marketer agrees to indemnify and hold the Company harmless from any and all claims, liabilities, penalties, back taxes, social contributions, and costs arising from such determination, to the fullest extent permitted by law.



## 7. MARKETING MATERIALS

### 7.1 Company-Provided Materials

The Company may, at its sole discretion, provide the Marketer with marketing materials including but not limited to brochures, product catalogues, price lists, presentation templates, digital assets, business cards, and branded collateral for use in the Marketer's promotional activities.

### 7.2 Use of Materials

**(a)** The Marketer shall use only Company-approved marketing materials in all promotional and sales activities. The Marketer shall not create, modify, or distribute any marketing materials bearing the Company's name, logo, or trademarks without the prior written approval of the Company.

**(b)** All marketing materials provided by the Company remain the exclusive property of the Company and must be returned or destroyed upon termination of this Agreement.

### 7.3 Digital and Social Media

**(a)** Any marketing activities conducted by the Marketer through digital channels, social media platforms, websites, or other online media must comply with the Company's brand guidelines and social media policy as communicated from time to time.

**(b)** The Marketer shall not create websites, social media accounts, or online profiles that use the Company's name, logo, or trademarks without the prior written consent of the Company.

---

## 8. CUSTOMER OWNERSHIP

### 8.1 Company Ownership of Customer Relationships

The Marketer acknowledges and agrees that all Customers, Leads, referrals, and customer data generated through the Marketer's activities under this Agreement are and shall remain the exclusive property of the Company. The Marketer acquires no proprietary rights, ownership interest, or entitlement in or to any Customer relationship.

### 8.2 Customer Communication

**(a)** The Company retains the sole and exclusive right to manage all ongoing customer relationships, including customer service, support, billing, and account management.

**(b)** The Marketer shall not contact or communicate with Customers regarding matters outside the scope of their initial referral and onboarding activities without the Company's prior written consent.

### 8.3 Post-Termination

Upon termination of this Agreement for any reason, the Marketer shall immediately cease all contact with Customers and Leads and shall not solicit, divert, or attempt to redirect any Customer or Lead to any competing business or service provider.

---

## 9. INTELLECTUAL PROPERTY

### 9.1 Company IP Rights

The Marketer acknowledges that all Intellectual Property of the Company, including but not limited to the PECH name, logo, trademarks, trade names, service marks, proprietary technology, software, platform designs, product designs, and all related intellectual property rights, are and shall remain the exclusive

property of the Company.

### 9.2 Limited Licence

The Company grants the Marketer a limited, non-exclusive, non-transferable, revocable licence to use the Company's name, logo, and approved marketing materials solely for the purpose of performing the marketing activities described in this Agreement, subject to the Company's brand guidelines.

### 9.3 No Transfer of Rights

Nothing in this Agreement shall be construed as transferring, assigning, or granting to the Marketer any ownership interest or rights in the Company's Intellectual Property. The limited licence granted herein shall terminate immediately upon the termination of this Agreement.

### 9.4 Marketer-Created Content

Any marketing content, sales materials, customer lists, or other works created by the Marketer in the course of performing services under this Agreement that incorporate or relate to the Company's Products and Services or Intellectual Property shall be deemed works made in the furtherance of the Company's business and shall vest exclusively in the Company.

---

## 10. CONFIDENTIALITY

### 10.1 Obligation of Confidentiality

The Marketer shall maintain strict confidentiality with respect to all Confidential Information disclosed by the Company or obtained in the course of performing services under this Agreement. The Marketer shall not, without the prior written consent of the Company, disclose, publish, communicate, or make available any Confidential Information to any third party, or use any Confidential Information for any purpose other than the performance of the Marketer's obligations under this Agreement.

### 10.2 Scope of Confidential Information

Without limiting the generality of the definition of Confidential Information, the following shall be deemed Confidential Information:

**(a)** Customer lists, customer data, Lead information, and sales pipeline details;

**(b)** Commission rates, pricing structures, discount policies, and revenue data;

**(c)** Product roadmaps, technical specifications, and unreleased product information;

**(d)** Business strategies, marketing plans, and competitive intelligence;

**(e)** The terms and conditions of this Agreement;

**(f)** Internal processes, systems, and operational methodologies of the Company;

**(g)** Any information that a reasonable person would consider confidential given the nature of the information and the circumstances of its disclosure.

### 10.3 Exceptions

The obligations of confidentiality shall not apply to information that:

**(a)** Is or becomes publicly available through no fault of the Marketer;

**(b)** Was lawfully in the Marketer's possession prior to disclosure by the Company, as evidenced by written

records;

**(c)** Is independently developed by the Marketer without reference to or use of the Confidential Information;

**(d)** Is required to be disclosed by law, regulation, or order of a court or regulatory authority, provided that the Marketer gives the Company prompt written notice of such requirement and cooperates with the Company in seeking a protective order.

### 10.4 Duration

The obligations of confidentiality shall survive the termination of this Agreement for a period of **three (3) years** from the date of termination, or for so long as the Confidential Information remains confidential, whichever is longer.

### 10.5 Return of Materials

Upon termination of this Agreement, the Marketer shall promptly return to the Company or, at the Company's option, destroy all documents, files, records, electronic data, and other materials containing Confidential Information, and shall provide written certification of such return or destruction.

PECH GROUP HOLDINGS LTD

## 11. NON-DISPARAGEMENT

### 11.1 Mutual Non-Disparagement

**(a)** The Marketer agrees not to make, publish, or communicate any disparaging, defamatory, or negative statements, whether written or oral, about the Company, its directors, officers, employees, Products and Services, or business practices, during the term of this Agreement and for a period of **twenty-four (24) months** following its termination.

**(b)** The Company agrees not to make, publish, or communicate any disparaging, defamatory, or negative statements about the Marketer during the term of this Agreement and for a period of **twenty-four (24) months** following its termination.

### 11.2 Exception

This clause shall not prevent either Party from making truthful statements required by law, regulation, or legal process, or from providing truthful information in the course of any legal, regulatory, or arbitration proceeding.

## 12. COMPLIANCE

### 12.1 Legal Compliance

The Marketer shall comply with all applicable laws, regulations, and industry standards of the Federal Republic of Nigeria in the performance of their duties under this Agreement, including but not limited to:

**(a)** The Federal Competition and Consumer Protection Act (FCCPA);

**(b)** The Nigeria Data Protection Act (NDPA) 2023 and all subsidiary regulations;

**(c)** The Companies and Allied Matters Act (CAMA) 2020;

**(d)** All applicable tax laws, including the Personal Income Tax Act (PITA), Companies Income Tax Act (CITA), and FIRS regulations;

**(e)** The Cybercrimes (Prohibition, Prevention, etc.) Act 2015;

**(f)** The Consumer Protection Council Act;

**(g)** All applicable advertising standards and regulations issued by the Advertising Regulatory Council of Nigeria (ARCON).

### 12.2 Anti-Bribery and Corruption

The Marketer shall not engage in any form of bribery, corruption, kickbacks, or other improper payments or inducements in connection with the marketing and sale of the Company's Products and Services. The Marketer shall comply with the Corrupt Practices and Other Related Offences Act and all applicable anti-corruption laws.

### 12.3 Ethical Conduct

The Marketer shall conduct all marketing activities with integrity, honesty, and professionalism. The Marketer shall not engage in any conduct that could bring the Company's name or reputation into disrepute.

---

## 13. NON-COMPETITION

### 13.1 During the Term

During the term of this Agreement, the Marketer shall not, without the prior written consent of the Company, directly or indirectly:

**(a)** Market, promote, sell, or distribute products or services that are substantially similar to or competitive with the Company's Products and Services for any third party;

**(b)** Establish, operate, or participate in any business that competes with the Company's business within the Authorised Territory;

**(c)** Solicit or entice away, or attempt to solicit or entice away, any customer, client, supplier, or business partner of the Company.

### 13.2 Post-Termination

For a period of **twelve (12) months** following the termination of this Agreement for any reason, the Marketer shall not, within the Authorised Territory:

**(a)** Directly or indirectly market, promote, sell, or distribute IoT devices, smart home systems, solar solutions, or similar platform-based technology services for any competitor of the Company;

**(b)** Solicit, approach, or accept business from any Customer or Lead that was registered in the Company's CRM System during the twelve (12) months preceding the date of termination;

**(c)** Use any Confidential Information obtained during the term of this Agreement to compete with the Company or to benefit any competitor.

### 13.3 Reasonableness

The Marketer acknowledges that the restrictions contained in this Section are reasonable and necessary for the protection of the Company's legitimate business interests, including its customer relationships, Confidential Information, and market position, and that the Marketer has received adequate consideration in the form of commission opportunities in exchange for agreeing to these restrictions.

### 13.4 Remedies

In the event of a breach or threatened breach of this Section, the Company shall be entitled to seek injunctive relief, specific performance, or any other equitable remedy, in addition to any other remedies available at law or under this Agreement, including the forfeiture of any outstanding commission payments.

## 14. MEDIA POLICY

### 14.1 No Unauthorised Statements

The Marketer shall not make any public statements, press releases, media appearances, blog posts, social media posts, or other public communications on behalf of the Company or in connection with the Company's business without the prior written approval of the Company's designated communications officer.

### 14.2 Media Enquiries

All media enquiries, press requests, and interview requests received by the Marketer in connection with the Company's business shall be immediately referred to the Company's communications department. The Marketer shall not respond to any such enquiries without prior authorisation.

### 14.3 Social Media

The Marketer may share Company-approved marketing content on their personal social media accounts, provided that such sharing is done in accordance with the Company's social media guidelines and includes appropriate disclosures that the Marketer is an independent commission-based agent of the Company.

### 14.4 Survival

The obligations under this Section shall survive the termination of this Agreement for a period of **twelve (12) months**.



## 15. TERM & TERMINATION

### 15.1 Initial Term

This Agreement shall commence on the Effective Date and shall continue for an initial term of **twelve (12) months** (the "Initial Term"), unless earlier terminated in accordance with the provisions of this Section.

### 15.2 Renewal

Upon expiry of the Initial Term, this Agreement shall automatically renew for successive periods of **twelve (12) months** each (each a "Renewal Term"), unless either Party gives the other Party written notice of non-renewal at least **thirty (30) calendar days** prior to the expiry of the then-current term.

### 15.3 Termination by Either Party

Either Party may terminate this Agreement at any time by giving the other Party **thirty (30) calendar days** written notice of termination, without the need to assign any reason.

### 15.4 Termination for Cause

The Company may terminate this Agreement immediately and without notice in the event that the Marketer:

**(a)** Commits a material breach of any provision of this Agreement;

**(b)** Engages in fraud, dishonesty, misrepresentation, or any criminal conduct;

**(c)** Brings the Company's name or reputation into disrepute;

**(d)** Breaches the Confidentiality, Non-Competition, or Non-Disparagement provisions of this Agreement;

**(e)** Fails to generate any Qualified Sales for a period of three (3) consecutive months without reasonable justification;

**(f)** Becomes bankrupt, insolvent, or enters into any arrangement with creditors;

**(g)** Violates any applicable law, regulation, or industry standard in the performance of their duties under this Agreement.

### 15.5 Effect of Termination

Upon termination of this Agreement:

**(a)** The Marketer shall immediately cease all marketing activities on behalf of the Company;

**(b)** The Marketer shall return all Company property, marketing materials, and Confidential Information in their possession;

**(c)** The Marketer shall be entitled to receive Commission on Qualified Sales that were completed and verified prior to the date of termination, subject to the Clawback provisions and any offsets for amounts owed to the Company;

**(d)** No Commission shall be payable on Leads or sales that have not been converted to Qualified Sales as at the date of termination;

**(e)** All licences granted to the Marketer under this Agreement shall terminate immediately;

**(f)** The provisions of this Agreement that by their nature are intended to survive termination shall survive, including but not limited to Sections 8, 9, 10, 11, 13, 14, 16, 18, 19, and 20.

---

## 16. CLAWBACK

### 16.1 Clawback Period

Commission paid or payable to the Marketer shall be subject to clawback in the event that a Customer cancels, returns, or obtains a refund for a product or service within **thirty (30) calendar days** of the original purchase date (the "Clawback Period").

### 16.2 Clawback Process

**(a)** Where a Qualified Sale is reversed, cancelled, or refunded within the Clawback Period, the Company shall be entitled to deduct the full amount of Commission attributable to that transaction from the Marketer's subsequent commission payments.

**(b)** Where the Marketer's subsequent commission payments are insufficient to cover the clawback amount, the Company may invoice the Marketer for the outstanding balance, which shall be payable within **fourteen (14) calendar days** of receipt of such invoice.

**(c)** For Platform Subscriptions, if a Customer cancels their subscription within the Clawback Period,

commission attributable to that subscription shall be clawed back and no further commission shall be payable on that subscription.

### 16.3 Chargebacks and Disputes

Where a customer payment is reversed due to a chargeback, payment dispute, or non-sufficient funds, the transaction shall be deemed not to have been a Qualified Sale, and any commission paid or payable thereon shall be subject to clawback under this Section.

### 16.4 Fraudulent Sales

Where the Company determines, in its reasonable discretion, that a sale was obtained through fraud, misrepresentation, or any improper means by the Marketer, the Company shall be entitled to claw back all commission paid on such sale, irrespective of the Clawback Period, and may terminate this Agreement immediately in accordance with Section 15.4.

---

## 17. REPORTING

### 17.1 Monthly Reports

The Marketer shall submit a **monthly activity report** to the Company by the **fifth (5th) business day** of each calendar month, covering the preceding month's activities. The report shall include, at a minimum:

**(a)** Number of new Leads generated and registered in the CRM System;

**(b)** Status of all active Leads and prospects in the sales pipeline;

**(c)** Qualified Sales closed during the period, with customer details and transaction values;

**(d)** Marketing activities undertaken, including events attended, presentations conducted, and channels utilised;

**(e)** Market intelligence, including competitor activities, customer feedback, and emerging opportunities;

**(f)** Any challenges, issues, or support required from the Company.

### 17.2 CRM Tracking

**(a)** The Marketer shall maintain accurate and up-to-date records of all Leads, referrals, and customer interactions in the Company's CRM System.

**(b)** All Leads must be registered in the CRM System within **forty-eight (48) hours** of initial contact with the prospective customer.

**(c)** The Company's CRM records shall serve as the authoritative source of data for commission calculations, Lead attribution, and performance assessment.

### 17.3 Access and Audit

The Company reserves the right to audit the Marketer's sales records, CRM entries, and activity reports at any time to verify the accuracy of commission claims and compliance with this Agreement.

---

## 18. INDEMNIFICATION

### 18.1 Marketer's Indemnification

The Marketer shall indemnify, defend, and hold harmless the Company, its directors, officers, employees, agents, and Affiliates from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable legal fees) arising out of or in connection with:

**(a)** Any breach of this Agreement by the Marketer;

**(b)** Any negligent, fraudulent, or wrongful act or omission of the Marketer in the performance of their duties under this Agreement;

**(c)** Any misrepresentation made by the Marketer to Customers or third parties regarding the Company's Products and Services;

**(d)** Any violation of applicable law, regulation, or industry standard by the Marketer;

**(e)** Any claims arising from the Marketer's tax obligations or employment status;

**(f)** Any unauthorised use of the Company's Intellectual Property by the Marketer.

### 18.2 Company's Indemnification

The Company shall indemnify, defend, and hold harmless the Marketer from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable legal fees) arising out of or in connection with:

**(a)** Product liability claims relating to defects in the Company's Products and Services, provided such claims do not arise from the Marketer's misrepresentation or unauthorised modification of the products;

**(b)** Any infringement of third-party intellectual property rights by the Company's Products and Services or approved marketing materials.

### 18.3 Indemnification Procedure

The indemnified Party shall promptly notify the indemnifying Party of any claim for which indemnification is sought, cooperate fully in the defence of such claim, and shall not settle or compromise any such claim without the prior written consent of the indemnifying Party.



## 19. DATA PROTECTION

### 19.1 Compliance with NDPA

Both Parties shall comply with the provisions of the **Nigeria Data Protection Act (NDPA) 2023** and all subsidiary regulations, guidelines, and directives issued thereunder by the Nigeria Data Protection Commission (NDPC) in relation to all personal data processed in connection with this Agreement.

### 19.2 Data Processing

**(a)** The Marketer acknowledges that in the course of performing their duties under this Agreement, they may collect, access, or process personal data of Customers, Leads, and other individuals.

**(b)** The Marketer shall process personal data only for the purposes of performing their obligations under this Agreement and in accordance with the Company's data protection policies and lawful instructions.

**(c)** The Marketer shall not transfer personal data to any third party without the prior written consent of the Company.

### 19.3 Data Security

The Marketer shall implement appropriate technical and organisational measures to protect personal data against unauthorised access, loss, destruction, alteration, or disclosure, having regard to the nature, scope, context, and purposes of the processing and the risks to the rights and freedoms of data subjects.

### 19.4 Data Breach Notification

In the event of any personal data breach, the Marketer shall notify the Company within **seventy-two (72) hours** of becoming aware of the breach, providing full details of the nature of the breach, the categories and approximate number of data subjects affected, the likely consequences of the breach, and the measures taken or proposed to address the breach.

### 19.5 Data Subject Rights

The Marketer shall cooperate with the Company in responding to data subject requests, including requests for access, rectification, erasure, restriction of processing, data portability, and objection, in accordance with the NDPA.

### 19.6 Data Return and Deletion

Upon termination of this Agreement, the Marketer shall, at the Company's option, return to the Company or securely delete all personal data in their possession or under their control, and shall provide written certification of such return or deletion within **fourteen (14) calendar days** of termination.

---

## 20. DISPUTE RESOLUTION

### 20.1 Negotiation

In the event of any dispute, controversy, or claim arising out of or relating to this Agreement, or the breach, termination, or validity thereof (a "Dispute"), the Parties shall first attempt to resolve the Dispute through good faith negotiations between their respective authorised representatives within **fourteen (14) calendar days** of written notice of the Dispute.

### 20.2 Mediation

If the Dispute cannot be resolved through negotiation within the period specified above, either Party may refer the Dispute to mediation under the rules of the Lagos Multi-Door Courthouse (LMDC) or any other mutually agreed mediation body. The mediation shall take place in **Lagos, Nigeria**, and the costs of mediation shall be borne equally by the Parties.

### 20.3 Arbitration

If the Dispute is not resolved through mediation within **thirty (30) calendar days** of the referral to mediation, the Dispute shall be referred to and finally resolved by arbitration in accordance with the Arbitration and Mediation Act of Nigeria. The arbitration shall be conducted as follows:

**(a)** The seat of arbitration shall be **Lagos, Nigeria**;

**(b)** The arbitration shall be conducted by a sole arbitrator, to be mutually agreed upon by the Parties. In the event that the Parties are unable to agree on an arbitrator within **fourteen (14) calendar days**, the arbitrator shall be appointed by the President of the Chartered Institute of Arbitrators (UK), Nigeria Branch;

**(c)** The language of the arbitration shall be **English**;

**(d)** The arbitrator's decision shall be final and binding on both Parties, and may be entered as a judgment in any court of competent jurisdiction;

**(e)** Each Party shall bear their own costs of the arbitration, unless the arbitrator orders otherwise.

### 20.4 Governing Law

This Agreement shall be governed by and construed in accordance with the **laws of the Federal Republic of Nigeria**.

### 20.5 Preservation of Rights

Nothing in this Section shall prevent either Party from seeking urgent injunctive or interim relief from a court of competent jurisdiction where necessary to protect their rights or prevent irreparable harm, pending the outcome of the dispute resolution process.

---

## 21. GENERAL PROVISIONS

### 21.1 Entire Agreement

This Agreement, together with all Schedules annexed hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, understandings, and agreements, whether written or oral, relating thereto.

### 21.2 Amendments

No amendment, variation, or modification of this Agreement shall be valid or binding unless made in writing and signed by both Parties.

### 21.3 Waiver

The failure of either Party to enforce any provision of this Agreement shall not constitute a waiver of such provision or of the right to enforce it at a later time. Any waiver must be in writing and signed by the waiving Party.

### 21.4 Severability

If any provision of this Agreement is found to be invalid, illegal, or unenforceable by a court of competent jurisdiction, such provision shall be severed from the Agreement and the remaining provisions shall continue in full force and effect.

### 21.5 Assignment

The Marketer shall not assign, transfer, or delegate any of their rights or obligations under this Agreement without the prior written consent of the Company. The Company may assign this Agreement to any Affiliate or successor entity without the Marketer's consent.

### 21.6 Notices

All notices, requests, demands, and other communications under this Agreement shall be in writing and shall be deemed to have been duly given when:

**(a)** Delivered personally;

**(b)** Sent by registered post or courier, three (3) business days after posting;

**(c)** Sent by email, upon confirmation of receipt by the receiving Party.

Notices shall be sent to the addresses specified on the first page of this Agreement, or to such other address as either Party may designate in writing.

### 21.7 Force Majeure

Neither Party shall be liable for any failure or delay in performing their obligations under this Agreement to the extent that such failure or delay is caused by circumstances beyond their reasonable control, including but not limited to acts of God, natural disasters, war, terrorism, civil unrest, pandemics, government actions, power failures, or internet outages, provided that the affected Party gives prompt written notice to the other Party and uses reasonable efforts to mitigate the effects of the force majeure event.

### 21.8 Relationship with Other Agreements

In the event of any conflict between the provisions of this Agreement and any other agreement between the Parties, the provisions of this Agreement shall prevail unless the other agreement expressly states that it takes precedence over this Commission Marketer Agreement.

### 21.9 Counterparts

This Agreement may be executed in any number of counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. Electronic signatures and scanned copies shall be deemed valid and binding.

### 21.10 No Third-Party Rights

Nothing in this Agreement is intended to or shall confer any benefit or right on any person who is not a Party to this Agreement.

---

## 22. SIGNATURE BLOCK

**IN WITNESS WHEREOF**, the Parties have executed this Commission Marketer Agreement as of the date first written above.

---

PECH GROUP HOLDINGS LTD

---

### FOR AND ON BEHALF OF PECH GROUP HOLDINGS LTD:

**Signature:** _____

**Name:** _____

**Title:** _____

**Date:** _____

**Company Stamp/Seal:**

---

### THE MARKETER:

**Signature:** _____

**Name:** _____

**Date:** _____

---

**WITNESS:**

**Signature:** _____

**Name:** _____

**Address:** _____

**Occupation:** _____

**Date:** _____

## 23. SCHEDULE A: COMMISSION RATE TABLE

### A.1 Base Commission Rates

| Product/Service Category | Commission Rate (%) | Payment Trigger | Referral Period |
|---|---|---|---|
| IoT Devices & Hardware | 8% | Customer payment received | 12 months |
| Platform Subscriptions | 12% | First 12 months of subscription | 12 months |
| Marketplace Listings | 5% | Listing fee paid | 6 months |
| Solar Solutions | 10% | Installation payment received | 12 months |
| Logistics Referrals | 3% | Service fee paid | 6 months |
| Enterprise/Custom Solutions | Negotiable | As per SOW | As per SOW |

### A.2 Volume Bonus Tiers

| Monthly Cumulative Sales (NGN) | Bonus Rate | Example: IoT Devices (8% Base) |
|---|---|---|
| NGN 0 - NGN 999,999 | Base rate (no bonus) | 8% |
| NGN 1,000,000 - NGN 4,999,999 | Base rate + 2% | 10% |
| NGN 5,000,000 - NGN 9,999,999 | Base rate + 4% | 12% |
| NGN 10,000,000 and above | Base rate + 6% | 14% |

### A.3 Authorised Territory

**Territory:** _____

### A.4 Assigned Product Lines

**Product Lines:** _____

### A.5 Special Terms (if any)

**Marketer's Initials: __ Date: _____**

**Company Representative's Initials: __ Date: _____**

*This document is the confidential property of PECH Group Holdings Ltd. Unauthorised reproduction, distribution, or disclosure is strictly prohibited.*

**PECH Group Holdings Ltd** | Lagos, Nigeria | pechgroupholdings.tech

PECH GROUP HOLDINGS LTD
PECH GROUP HOLDINGS LTD
PECH GROUP HOLDINGS LTD
TECHNOLOGY & INFRASTRUCTURE ENABLERS FOR PEOPLE

CONFIDENTIAL — PECH GROUP HOLDINGS LTD — LAGOS, NIGERIA — PECHGROUPHOLDINGS.TECH